

AMENDMENT 6 TO BAA FA8750-25-S-7001

The purpose of this modification is to update the BAA PM in Part I and Part VI as follows:

BAA PROGRAM MANAGER:

Qasim Zafar
AFRL/RITA
525 Brooks Rd
Rome, NY 13441-4505
Telephone: (315)330-2710
Email: qasim.zafar@us.af.mil

No other changes are made.

NAICS CODE: 541715

FEDERAL AGENCY NAME: Department of the Air Force, Air Force Materiel Command, AFRL - Rome Research Site, AFRL/Information Directorate, 26 Electronic Parkway, Rome, NY, 13441-4514

BAA ANNOUNCEMENT TYPE: Modification

BROAD AGENCY ANNOUNCEMENT (BAA): Foundations of Trusted Systems

BAA NUMBER: FA8750-25-S-7001

PART I – OVERVIEW INFORMATION

This announcement is for an Open, 2 Step BAA which is open and effective until 04 December 2028. Only white papers will be accepted as initial submissions; formal proposals will be accepted by invitation only. While white papers will be considered if received prior to 2 pm Eastern Standard Time (EST) on 04 December 2028, the following submission dates are suggested to best align with projected funding:

FY25 by 18 DEC 2024
FY26 by 01 SEP 2025
FY27 by 02 SEP 2026
FY28 by 03 SEP 2027
FY29 by 04 SEP 2028

Offerors should monitor the Contract Opportunities on the SAM website at <https://SAM.gov> in the event this announcement is amended.

CONCISE SUMMARY OF TECHNOLOGY REQUIREMENT: Seeking innovative research in technologies and techniques to establish trusted foundations for hardware and software that enables secure, resilient and affordable Command, Control, Communications, Computers, and Intelligence (C4I)

and Cyber technologies (C4I and Cyber Technologies) information processing systems. *This BAA is a follow-on to BAA FA8750-20-S-7012 entitled Foundations of Trusted Systems.*

BAA ESTIMATED FUNDING: Total funding for this BAA is approximately \$99.9M. Individual awards will not normally exceed 36 months with dollar amounts normally ranging from \$100K to \$5M. There is also the potential to make awards up to any dollar value as long as the value does not exceed the available BAA ceiling amount.

ANTICIPATED INDIVIDUAL AWARDS: Multiple Awards are anticipated. However, the Air Force reserves the right to award zero, one, or more Procurement Contracts or Other Transactions, and assistance instruments for all, some, or none of the solicited effort based on the offeror's ability to perform desired work and funding fluctuations. There is no limit on the number of OTs that may be awarded to an individual offeror.

TYPE OF INSTRUMENTS THAT MAY BE AWARDED: FAR based Procurement contracts, CFR based grants and cooperative agreements or other transactions (OT) under 10 USC 4021, 10 USC 4022 (previously 10 USC 4002, 2371, 10 USC 4003, 2371b) depending upon the nature of the work proposed. 10 USC 4023 also allows for FAR based contracts, OTs for research, OTs for Prototype, and assistance instruments.

In the event that an Other Transaction for Prototype agreement is awarded as a result of this competitive BAA, and the prototype project is successfully completed, there is the potential for a prototype project to transition to award of a follow-on production contract or transaction. The Other Transaction for Prototype agreement itself will also contain a similar notice of a potential follow-on production contract or agreement.

AGENCY CONTACT INFORMATION: All white paper submissions and any questions of a technical nature shall be directed to the cognizant Technical Point of Contact (TPOC) as specified below (unless otherwise specified in the technical area):

BAA PROGRAM MANAGER:

Qasim Zafar
AFRL/RITA
525 Brooks Rd
Rome, NY 13441-4505
Telephone: (315)330-2710
Email: qasim.zafar@us.af.mil

Questions of a contractual/business nature shall be directed to the cognizant contracting officer, as specified below (**email requests are preferred**):

Amber Buckley
Email: Amber.Buckley@us.af.mil

Emails must reference the solicitation (BAA) number and title of the acquisition.

Pre-Proposal Communication between Prospective Offerors and Government Representatives: Dialogue between prospective offerors and Government representatives is encouraged. Technical and contracting questions can be resolved in writing or through open discussions. Discussions with any of

the points of contact shall not constitute a commitment by the Government to subsequently fund or award any proposed effort. Only Contracting Officers are legally authorized to commit the Government.

Offerors are cautioned that evaluation ratings may be lowered and/or proposal rejected if proposal preparation (Proposal format, content, etc.) and/or submittal instructions are not followed.

PART II – FULL TEXT ANNOUNCEMENT

BROAD AGENCY ANNOUNCEMENT (BAA) TITLE: Foundations of Trusted Systems

BAA NUMBER: BAA FA8750-25-S-7001

Assistance Listing Number: 12.800 and 12.910

Federal Acquisition Supply Chain Security Act (FASCSA) Orders: Depending on the date of issuance of this solicitation, FASCSA order(s) may be applicable. Therefore, the Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM) (<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable Federal Acquisition Supply Chain Security Act Orders prohibition. This requirement only applies to FAR based awards.

I. TECHNOLOGY REQUIREMENTS:

The Air Force Research Laboratory is soliciting white papers under this Broad Agency Announcement (BAA) for research, development, integration, test and evaluation of technologies/techniques to establish trusted foundations for hardware and software that enables secure, resilient and affordable Command, Control, Communications, Computers, and Intelligence (C4I) and Cyber technologies (C4I and Cyber Technologies) information processing systems.

- (1) **Trusted, Secure, and Resilient Computational Systems:** The objective of this technical area is to research and develop the essential elements, tools, and methodologies for trusted, secure, and resilient computing environments, including both the underlying hardware and software, side by side with power, cost, performance, and reliability. Topics of interest include, but are not limited to:
- a. Problems and challenges with current processor designs for trustworthiness and their solutions
 - b. Problems and challenges with current computer architectures for trustworthiness and solutions to them
 - c. Tools and methodologies for ensuring trustworthiness of integrated circuits (ICs) and systems targeting malicious inclusions such as hardware Trojans, side-channel timing attacks, etc.
 - d. New computer architectures for secure and reliable computing, including data integrity and code protection and verification.
 - e. Operating System level constructs, objects, functions, and distributions that must be provided to complement the hardware to enable a trustworthy computing base.

- f. Tools and methodologies for ensuring trustworthiness and security of the software development process, including compilers, assemblers, linkers, binary checks, and source code analysis.
- g. State-of-the-art software-based assurance designs, methodologies, or concepts which are better suited for implementation in hardware than software.
- h. Hardware architecture techniques for self IC inspection, characterization, and testing/debug. The se techniques can be applied for automated post fabrication verification and/or adaptive system degradation.

(2) **Trusted and Assured Software:**

(a) **Software Assurance:** The objective of this area is to enhance and create foundations of Software Assurance (SwA). Achieve SwA across the application space through a holistic approach, agilely addressing all layers of the supply chain and enterprise including governance, partnerships, process, standards, and education. Areas of interest include:

(i) SwA technology which advances the state of SwA by addressing technology gaps to improve SwA tools (e.g. precision and recall), and scalability (e.g. code size, expertise required, and execution time).

(ii) Tools Assessment and Categorization

(iii) Evidence-based software assurance

(iv) Prototype Software Assurance Demonstration

(b) **Trusted and Resilient Software-intensive Systems Engineering:** The objective of this technical area is to develop resilient techniques, methodologies and tools to guarantee trust (as measured by correctness, security, reliability, predictability, and survivability) and maintain this trust as self-healing/repair techniques fight through cyber-attacks, including zero-day attacks. This research area seeks to extend and advance software development tools that will enable the development and maintenance of trusted and resilient software systems for enterprise and tactical level embedded cyber physical platforms in DevSecOps. This area will focus on research and development to advance software (SW) development tools, to include formal tools, model based techniques and/or architectures based approaches to enable the development of SW systems that are both trusted and resilient. Research and development will also be focused on new approaches, methods and/or tools for continuous (runtime) Verification & Validation(V&V) and runtime environments that can monitor and maintain a trusted and resilient envelope of operation. Technical areas of interest include:

(i) Scalable techniques to enable trust in model-based software engineering, including correctness of machine learning

(ii) Model-based engineering for predictable software attributes

(iii) Formal methods tools, including connecting proofs of the models to actual code and auditable proof production for tools and static analysis algorithms

(iv) Provably correct code generation and repair

(v) Evolutionary approaches, trusted software and systems composability

(vi) Modeling, analysis, and verification of autonomous software

(vii) Novel architectural approaches, strategic “roots of trust,” hardening and resiliency techniques such as artificial diversity, containment areas for execution of untrusted software, lightweight runtime monitoring techniques and utilization of hardware (HW) advances

(viii) Trusted and resilient mechanisms to fight through software failures, cyber-attacks to include zero-day attack

(ix) Human understanding and trust of automated software development, red teaming, metrics and measures of trustworthy systems, integration, validation and demonstration on a realistic mission critical embedded system exemplar

(x) Autonomous resilience, self-healing software systems, and pliable computing.

(c) Cyber Physical Systems (CPS): The objective of this technical area is to develop the tools, methodologies, and foundational science providing required scalability and interoperability to make integration and subsequent analysis of computational and physical components and the networks connecting them practical. Technical areas of interest include:

(i) Specification, modeling, and analysis such as heterogeneous models of computation and hybrid discrete and continuous systems;

(ii) Modularity, composability, predictability, and synthesis addressing the issues of scalability and the integration of legacy systems; and

(iii) Verification and validation techniques (assurance, simulation, formal methods, correct-and-secure-by-construction, etc.) applicable to these models.

(d) AI in Trusted Systems: The objective of this research area is to leverage the potential of human-machine teaming to improve automation, raise human understanding, and thereby mitigate the potential risks of bad information or bad decisions from designers. This area's focus is therefore on raising abstraction levels, leveraging AI for aiding in correct-by-construction design and evaluation, and developing techniques for continual assurance of the learning-enabled components of those systems. Technical areas of interest include:

(i) Capturing, learning, or annotating software intent and constraints separate from the concrete decisions required to create a specific instance of software

(ii) Using captured intent to drastically reduce the human-in-the-loop effort needed to adapt software to new requirements, platforms, and resources

(iii) Verifying that the newly adapted software provides the functional needs of the customer/end user and that the instance does not violate any requirements

(iv) Integrating a new intent-defined software development paradigm into existing Agile workflows to enable adoption and transition into the greater programmer community

(v) Cost-effective, reliable methods of predicting performance of system configurations using high-fidelity models

(vi) Automated decision-making processes that can rapidly converge on solutions concerning interdependent design constraints

(vii) Exploration techniques that scale to large state spaces

(viii) Means of curating evidence for the assurance of software

(ix) Technology for validation and assessment of confidence in an assurance case argument

(x) Automated construction of assurance cases

(xi) Continual assurance technology for learning-enabled components.

(xii) Establishing robust mechanisms to monitor, validate, and assess machine learning models

(xiii) Detecting and mitigating security vulnerabilities, including drift, bias, and adversarial attacks in AI systems.

(xiv) Integrating security-by-design principles into the development and deployment lifecycle of learning-enabled components

(xv) Assessing the correctness of AI-based decisions and behaviors through rigorous testing and validation processes, ensuring alignment with intended functionality and minimizing risk

(xvi) Utilizing AI to streamline the adoption, automation, and scalability of formal methods and verification techniques in software development, enhancing usability, reducing expertise barriers, and facilitating more effective human-machine collaboration.

(e) Digital Engineering Model-based Analysis: In support of the Digital Engineering Strategy, it is required to develop techniques and methodologies to extract software models from code. Rapid and accurate generation of models is foundational to reducing errors and time required to develop and maintain complex software systems. Technical areas of interest include:

(i) Extraction of models from source code

- Generated models should have formal semantics for analyzability
- Support, but not need not be strictly limited to, extraction from C/C++ sources
- Due to the complexities involved, it is anticipated that extraction from source code will come

first

(ii) Models of the behavior of the source code as well as its structure

(iii) Annotation of the extracted models with requirements and other non-functional properties necessary for security analysis

(iv) extraction of models from binaries – these models should also have formally analyzable semantics

IMPORTANT NOTES REGARDING:

1. **FUNDAMENTAL RESEARCH.** It is DoD policy that the publication of products of fundamental research will remain unrestricted to the maximum extent possible. National Security Decision Directive (NSDD) 189 defines fundamental research as follows:

‘Fundamental research’ means basic and applied research in science and engineering, the results of which ordinarily are published and shared broadly within the scientific community, as distinguished from proprietary research and from industrial development, design, production, and product utilization, the results of which ordinarily are restricted for proprietary or national security reasons.

As of the date of publication of this BAA, the Government cannot identify whether work proposed under this BAA may be considered fundamental research and may award both fundamental and non-fundamental research. Proposers should indicate in their proposal whether they believe the scope of the research included in their proposal is fundamental or not. While proposers should clearly explain the intended results of their research, the Government shall have sole discretion to select award instrument type and to negotiate all instrument terms and conditions with selectees. Appropriate clauses will be included in resultant awards for non-fundamental research to prescribe publication requirements and other restrictions, as appropriate.

For certain research projects, it may be possible that although the research being performed by the awardee is restricted research, a sub-awardee may be conducting fundamental research. In those cases, it is the awardee’s responsibility to explain in their proposal why its sub-awardee’s effort is fundamental research.

2. **CLOUD COMPUTING.** In accordance with DFARS Clause 252.239-7010, if the development proposed requires storage of Government, or Government-related data on the cloud, offerors need to ensure that the cloud service provider proposed has been granted Provisional

Authorization by the Defense Information Systems Agency (DISA) at the level appropriate to the requirement.

II. AWARD INFORMATION:

1. FUNDING: Total funding for this BAA is approximately \$99.9. The anticipated funding to be obligated under this BAA is broken out by fiscal year as follows:

FY26 - \$33.28M

FY27 - \$23.80M

FY28 - \$22.09M

FY29 - \$20.73M

- a. Individual awards will not normally exceed 36 months with dollar values normally ranging from \$100K to \$5M. There is also the potential to make awards up to any dollar value as long as the value does not exceed the available BAA ceiling amount.
 - b. The Government reserves the right to select all, part, or none of the proposals received, subject to the availability of funds. All potential Offerors should be aware that due to unanticipated budget fluctuations, funding in any or all areas may change with little or no notice.
2. FORM. Awards of efforts as a result of this announcement will be in the form of contracts, grants, cooperative agreements or other transactions depending upon the nature of the work proposed.
3. BAA TYPE: **This is a two-step open broad agency announcement (or advanced research announcement).** This announcement constitutes the only solicitation.

As **STEP ONE – The Government is only soliciting white papers at this time.** **DO NOT SUBMIT A FORMAL PROPOSAL.** Those white papers found to be consistent with the intent of this BAA may be invited to submit a technical and cost proposal. See Section VI of this announcement for further details regarding the proposal.

III. ELIGIBILITY INFORMATION:

1. ELIGIBILITY: All qualified offerors who meet the requirements of this BAA may apply.
2. FOREIGN PARTICIPATION/ACCESS:
 - a. **This BAA is closed to foreign participation.** This includes both foreign ownership and foreign nationals as employees or subcontractors.
 - b. Exceptions.
 1. Fundamental Research. If the work to be performed is unclassified, fundamental research, this must be clearly identified in the white paper and/or proposal. See Part II, Section I for more details regarding Fundamental Research. Offerors should still identify any performance by foreign nationals at any level (prime contractor or subcontractor) in their proposals. Please specify the nationals' country of origin, the type of visa or work permit under which they are performing and an explanation of their anticipated level of

involvement. You may be asked to provide additional information during negotiations in order to verify the foreign citizen's eligibility to participate on any contract or assistance agreement or other transaction issued as a result of this announcement

2. **Foreign Ownership, Control or Influence (FOCI) companies who have mitigation plans/paperwork in place.** Proof of approved mitigation documentation must be provided to Amber Buckley, Contracting Officer, at Amber.Buckley@us.af.mil prior to submitting a white paper and/or a proposal. Defense Counterintelligence Security Agency (DCSA) approved mitigation documentation includes one of the following: Board Resolution; Security Control Agreement; Special Security Agreement; Proxy Agreement; and Voting Trust Agreement. In addition to providing the approved mitigation documentation, also provide your CAGE Code and your fully executed DCSA cover letter. Expect at least 10 business days for the Government to review and verify FOCI mitigation documentation. Offerors who do not hold one of the above FOCI mitigation documents must work with DCSA to obtain mitigation documentation prior to being eligible under the BAA. For information on FOCI mitigation, contact DCSA. Additional details can be found at: <https://www.dcsa.mil/Industrial-Security/Entity-Vetting-Facility-Clearances-FOCI/Foreign-Ownership-Control-or-Influence/>
3. **Foreign Nationals as Employees or Subcontractors. Applicable to any effort not considered Fundamental Research.** Offerors are responsible for ensuring that all employees and/or subcontractors who will work on a resulting contract are eligible to do so. Any employee who is not a U.S. citizen or a permanent resident will be restricted from working on any resultant contract unless prior approval of the Department of State or the Department of Commerce is obtained via a technical assistance agreement or an export license. Violations of these regulations can result in criminal or civil penalties.

c. Information Regarding Non-US Citizens Assigned to this Project

1. Contractor employees requiring access to USAF bases, AFRL facilities, and/or access to U.S. Government Information Technology (IT) networks in connection with the work on contracts, assistance instruments or other transactions awarded under this BAA **must be U.S. citizens**. For the purpose of base and network access, possession of a permanent resident card ("Green Card") does not equate to U.S. citizenship. This requirement does not apply to foreign nationals approved by the U.S. Department of Defense or U.S. State Department under international personnel exchange agreements with foreign governments. It also does not apply to dual citizens who possess US citizenship, to include Naturalized citizens. Any waivers to this requirement must be granted in writing by the Contracting Officer prior to providing access. Specific format for waiver request will be provided upon request to the Contracting Officer. The above requirements are in addition to any other contract requirements related to obtaining a Common Access Card (CAC).
2. For the purposes of Paragraph 1, if an IT network/system does not require AFRL to endorse a contractor's application to said network/system in order to gain access, the organization operating the IT network/system is responsible for controlling access to its system. If an IT network/system requires a U.S. Government sponsor to endorse the application in order for access to the IT network/system, AFRL will only endorse the following types of applications, consistent with the requirements above:

- a) Contractor employees who are U.S. citizens performing work under contracts, assistance instruments or other transactions awarded under this BAA.
- b) Contractor employees who are non-U.S. citizens and who have been granted a waiver.

Any additional access restrictions established by the IT network/system owner apply.

3. FEDERALLY FUNDED RESEARCH AND DEVELOPMENT CENTERS AND

GOVERNMENT ENTITIES: Federally Funded Research and Development Centers (FFRDCs) and Government entities (e.g., Government/National laboratories, military educational institutions, etc.) are subject to applicable direct competition limitations and cannot propose to this BAA in any capacity unless they meet the following conditions:

- a. FFRDCs: FFRDCs must clearly demonstrate that the proposed work is not otherwise available from the private sector; and FFRDCs must provide a letter on official letterhead from their sponsoring organization citing the specific authority establishing their eligibility to propose to Government solicitations and compete with industry, and their compliance with the associated FFRDC sponsor agreement's terms and conditions. This information is required for FFRDCs proposing to be prime contractors or sub-awardees.
- b. Government Entities: Government entities must clearly demonstrate that the work is not otherwise available from the private sector and provide written documentation citing the specific statutory authority and contractual authority, if relevant, establishing their ability to propose to Government solicitations. While 10 U.S.C. § 2539b may be the appropriate statutory starting point for some entities, specific supporting regulatory guidance, together with evidence of agency approval, will still be required to fully establish eligibility.

FFRDC and Government entity eligibility will be determined on a case-by-case basis; however, the burden to prove eligibility for all team members rests solely with the proposer.

Government entities interested in performing work related to this announcement should contact the Technical Point of Contact (TPOC). If resulting discussions reveal a mutual interest, cooperation may be pursued via other vehicles.

4. ORGANIZATIONAL CONFLICTS OF INTEREST: In accordance with FAR 9.5, offerors are required to identify and disclose all facts relevant to potential OCIs involving the offerors organization and any proposed team member (subawardee, consultant). Under this Section, the offeror is responsible for providing this disclosure with each proposal submitted to the solicitation. The disclosure must include the offerors, and as applicable, proposed team member's OCI mitigation plan. The OCI mitigation plan must include a description of the actions the offeror has taken, or intends to take, to prevent the existence of conflicting roles that might bias the offerors judgment and to prevent the offeror from having unfair competitive advantage. The OCI mitigation plan will specifically discuss the disclosed OCI in the context of each of the OCI limitations outlined in FAR 9.505-1 through FAR 9.505-4.

- a. Agency Supplemental OCI Policy: In addition, AFRL has a supplemental OCI policy that prohibits contractors/performers from concurrently providing Scientific Engineering Technical Assistance (SETA), Advisory and Assistance Services (A&AS) or similar support services and being a technical performer. Therefore, as part of the FAR 9.5 disclosure requirement above, an offeror must affirm

whether the offeror or any proposed team member (subawardee, consultant) is providing SETA, A&AS, or similar support to any AFRL office(s) under: (a) a current award or subaward; or (b) a past award or subaward that ended within one calendar year prior to the proposal’s submission date. If SETA, A&AS, or similar support is being or was provided to any AFRL office(s), the proposal must include:

- . The name of the AFRL office receiving the support;
- . The prime contract number;
- . Identification of proposed team member (subawardee, consultant) providing the support; and
- . An OCI mitigation plan in accordance with FAR 9.5.

b. Government Procedures: In accordance with FAR 9.503, 9.504 and 9.506, the Government will evaluate OCI mitigation plans to avoid, neutralize or mitigate potential OCI issues before award and to determine whether it is in the Government’s interest to grant a waiver. The Government will only evaluate OCI mitigation plans for proposals that are determined selectable under the solicitation evaluation criteria and funding availability. The Government may require proposers to provide additional information to assist the Government in evaluating the offerors OCI mitigation plan. If the Government determines that an offeror failed to fully disclose an OCI; or failed to provide the affirmation of AFRL support as described above; or failed to reasonably provide additional information requested by the Government to assist in evaluating the proposer’s OCI mitigation plan, the Government may reject the proposal and withdraw it from consideration for award.

5. **S&T PROTECTION.**

I. Notice of Intent.

- (a) Security Risk Review. Each proposal submission will be subject to a Security Risk Review prior to selection for award. The Security Risk Review is applied to federally funded research designed to help protect Department of the Air Force Science and Technology (S&T) by identifying possible vectors of undue foreign influence. AFRL will follow all policy and procedures outlined in Air Force Research Laboratory (AFRL) Instruction AFRLI 61-113, Science and Technology Protection for the Air Force Research Laboratory and Department of the Air Force Instruction DAFI 63-101/20-101, Integrated Lifecycle Management.
- (b) Security risk review for these subject proposals will be developed for all proposed Senior/Key personnel and “Covered Individuals”. These risk reviews will be based on information disclosed in a Research and Related Senior and Key Person Profile and Security Questionnaire. In addition, any accompanying or referenced documents, publicly available information, and information contained in internal U.S. Government databases will be utilized in risk reviews. Nationality or citizenship is not a factor in the security risk reviews.
- (c) When considering all external engagements, AFRL incorporates a holistic decision-making process that encompasses technical and security factors. The security review method implemented by AFRL measures risk factors to identify the appropriate Risk Acceptance Level (RAL) within the organization. The objective analysis of the security risk factors is conducted to empower AFRL’s S&T leaders to make risk-informed decisions. The review process generally looks at five factors, or risk areas, but with authority for expanded review as noted in OSD R&E Memorandum dated 6 Jun 2023. The potential security risk factors are set forth below:

Potential security risk factors:

(1) Foreign Talent Program	(2) Funding	(3) Foreign Institutions	(4) Denied Entities	(5) U.S. Government Systems
Indicators of active and past participation or sponsorship in a strategic competitor Foreign Talent Program with history of targeting U.S. research or technology.	Indicators of active, historical, or pattern of conflict of interest, conflict of commitment, or pattern of direct funding from a strategic competitor or country with history of targeting U.S. research or technology.	Indicators of active, historical, or pattern of association with direct affiliation, collaboration with a foreign institution, person, or entity associated with a strategic competitor or country with history of targeting U.S. research or technology.	Indicators of an active affiliation or past affiliation or present association with an entity on the U.S. Gov’t denied entity or person list or EO 13959 or subsequent similar issuances	Indicators that may reside in safeguarded U.S. government environments, according to its ascribed classification and not releasable for public consumption.

II. Actions Required by Applicants/Recipients at proposal submission.

(a) In accordance with AFRLI 61-113, S&T Protection, Applicants/Recipients are required to submit the following documentation with their proposal:

(1) Grant or Cooperative Agreement (CA) proposals:

(i) Standard Form 424, “Research and Related Senior and Key Person Profile (Expanded) (See Appendix 1) AND;

(ii) Security Program Questionnaire (See Appendix 2) AND;

(iii) “Privacy Act Statement” consent form for each Covered Individual that is also signed by the Applicants/Recipients as that Individual’s Sponsor. (See “Covered Individual” section below, and Appendix 4)

(2) Contract or Other Transaction Agreement (OTA) proposals:

(i) Research and Related Senior and Key Person Profile Worksheet (See Appendix 3) AND;

(ii) Security Program Questionnaire (See Appendix 2) AND;

(iii) “Privacy Act Statement” consent form for each Covered Individual that is also signed by the Applicant/Recipient as that Individual’s Sponsor. (See “Covered Individual” section below, and Appendix 4)

The above appendices are included in the RI-Specific Proposal Preparation Instructions which can be accessed at: <https://sam.gov/opp/5d5947ee115b4a49adc07d0bc4bc72e5/view> . Always reference the latest versions of these documents. Complete and submit the required forms with your proposal to the technical point of contact (TPOC) listed in Section VII-Agency Contacts **AND** AFRL.RIOF@us.af.mil.

(3) In the event a security risk is identified, and the Government has determined the security risk exceeds the acceptable threshold, the Applicant/Recipient will be notified and informed of the decline of award. **The Government will only provide a general statement of the reasoning due to Government OPSEC measures.**

(4) By submission of the Research and Related Senior Key Person Profile and Security Program Questionnaire, the Applicant/Recipient agrees to comply with the following:

(i) To certify that each covered individual who is listed on the application has been made aware: 1) of all relevant disclosure requirements, including the requirements of 42 U.S.C. § 6605; and 2) that false representations may be subject to prosecution and liability pursuant to, but not limited to, 18 U.S.C. §§287, 1001, 1031 and 31 U.S.C. §§ 3729-3733 and 3802. See National Science and Technology Council Guidance for Implementing National Security Presidential Memorandum 33 (NSPM-33) on National Security Strategy for United States Government-Supported Research and Development (January 2022).

(ii) To establish and maintain an internal process or procedure to address foreign talent programs, conflicts of commitment, conflicts of interest, and research integrity.

(iii) To exercise due diligence to identify Foreign Components or participation by Senior/Key Personnel in Foreign Government Talent Recruitment Programs and agree to share such information with the Government upon request.

III. Actions Required by Covered Individuals.

(a) Covered Individual. An individual who contributes to a substantive, meaningful way to the scientific development or execution of a research and development project proposed to be carried out with a research and development award from a federal research agency; and is designated as a covered individual by the federal research agency concerned. See 42 U.S.C. § 6605, Definitions. (Note: For

purposes of a Broad Agency Announcement (BAA) or Advanced Research Announcement (ARA) solicitation, “covered individuals” are all Senior/Key Personnel.)

(b) Federal law requires that all current and pending research support, as defined by 42 U.S.C. §6605, must be disclosed at the time of proposal submission, for all covered individuals. The Government may require an updated disclosure during the performance of any research project selected for funding. The Government will require an updated disclosure whenever covered individuals are added or identified as performing under the funded project.

(c) Covered Individuals are also required to sign the “Privacy Act Statement” and provide such signed statement to the Applicant/Recipient for submission with the proposal. (See Appendix 4)

(d) Any decision to accept a proposal for funding under this announcement will include full reliance on the individual’s statements. Failure to report fully and completely all sources of project support and outside positions and affiliations may be considered a material statement within the meaning of the False Claims Act, 31 U.S.C. 3729, and constitute a violation of Federal law.

IV. Actions required by Applicants/Recipients during period of performance:

(a) Applicant/Recipient will be required to re-submit the Research and Related Senior and Key Person Profile as an annual requirement. In addition, whenever a new covered individual(s) is to be added or identified as performing under the funded project, a new Research and Related Senior and Key Person Profile will be required prior to continued performance.

(b) If, at any time, during performance of this award, the Applicant/Recipient learns that its Senior/Key Research Personnel (including any sub awardee personnel who receive this designation) are or are believed to be participants in a Foreign Government Talent Program or have Foreign Components with a strategic competitor or country with a history of targeting U.S. technology for unauthorized transfer, the Applicant/Recipient will notify the Contracting/Grants/Agreements Officer within 5 business days of awareness.

(c) This disclosure must include specific information as to the personnel involved and the nature of the situation and relationship. The Government will review this information and conduct any necessary fact-finding or discussion with the Applicant/Recipient. The Government’s determination on disclosure may include acceptance, mitigation, or termination of the award.

(d) Failure of the Applicant/Recipient to reasonably exercise due diligence to discover or ensure that neither it nor any of its Senior/Key Research Personnel involved in the subject award are participating in a Foreign Government Talent Program or have a Foreign Component with a strategic competitor or country with a history of targeting U.S. technology for unauthorized transfer may result in the Government exercising remedies in accordance with federal law and regulation.

(e) The Applicant/Recipient will be required to flow down this provision to all sub awardees who have personnel designated as Senior/Key Research Personnel as a result of their involvement in the performance of the research.

IV. APPLICATION AND SUBMISSION INFORMATION:

All responses to this announcement must be addressed to the Technical Point of Contact (TPOC) listed in SECTION VII. DO NOT send white papers to the Contracting Officer.

All responsible sources may submit a bid, proposal, or quotation which shall be considered by the agency.

1. SUBMISSION DATES AND TIMES: It is recommended that white papers be received by 2 PM Eastern Standard Time (EST) on the following dates to maximize the possibility of award:

It is recommended that white papers be received by 2 PM Eastern Standard Time (EST) on the following dates to maximize the possibility of award:

FY25 by 18 DEC 2024

FY26 by 01 SEP 2025

FY27 by 02 SEP 2026

FY28 by 03 SEP 2027

FY29 by 04 SEP 2028

White papers will be accepted until 2 PM EST on 04 December 2028, but it is less likely that funding will be available in each respective fiscal year after the dates cited. This BAA will close on 04 December 2028.

All offerors submitting white papers will receive notification of their evaluation results within 45 days of submission. Offerors should email the TPOC and the Contracting Officer listed in Section VII, for status of their white paper(s) after 45 days, if no such correspondence has been received.

2. CONTENT AND FORMAT: Offerors are required to submit 1 copy of a 2 to 5 page white paper summarizing their proposed approach/solution. The purpose of the white paper is to preclude unwarranted effort on the part of an offeror whose proposed work is not of interest to the Government.

The white paper will be formatted as follows:

- a. Section A: Title, Period of Performance, Estimated Cost, Name/Address of Company, Technical and Contracting Points of Contact (phone and email)(this section is NOT included in the page count);
- b. Section B: Task Objective; and
- c. Section C: Technical Summary and Proposed Deliverables.

All white papers shall be double spaced with a font no smaller than 12 point. **Please note that less than 12 point font is acceptable for graphics and illustrations (as in labels and short descriptions) as long as it is readable when printed out on standard 8x11 paper.** In addition, respondents are requested to provide their Commercial and Government Entity (CAGE) Code, their unique entity identifier and electronic funds transfer (EFT) indicator (if applicable), an e-mail address and reference BAA FA8750-25-S-7001 with their submission.

Multiple white papers within the purview of this announcement may be submitted by each offeror. If the offeror wishes to restrict its white papers, they must be marked with the restrictive language stated in FAR 15.609(a) and (b).

3. HANDLING AND MAILING INSTRUCTIONS:

a. CLASSIFICATION GUIDANCE. All Proposers should review the NATIONAL INDUSTRIAL SECURITY PROGRAM OPERATING MANUAL (NISPOM), 32 CFR Part 117, as it provides baseline standards for the protection of classified information and prescribes the requirements

concerning Contractor Developed Information under paragraph §117.13. Defense Counterintelligence and Security Agency (DCSA) Site for the NISPOM is: <http://www.dcsa.mil/>.

In the event of a possible or actual compromise of classified information in the submission of your white paper or proposal, immediately but no later than 24 hours, bring this to the attention of your cognizant security authority and AFRL Rome Research Site Information Protection Office (IPO):

Information Protection Office (*contact only if a security compromise has occurred*)

Monday-Friday (0730-1630): Call 315-330-4048 or Email: Jennifer.moyer@us.af.mil

Evenings and Weekends: Call 315-330-2961

b. CLASSIFIED SUBMISSIONS. AFRL/RITA will accept classified responses to this BAA when the classification is mandated by classification guidance provided by an Original Classification Authority of the U.S. Government, or when the offeror believes the work, if successful, would merit classification.

Security classification guidance in the form of a DD Form 254 (DoD Contract Security Classification Specification) will not be provided at this time since AFRL is soliciting ideas only.

Offerors that intend to include classified information or data in their white paper submission or who are unsure about the appropriate classification of their white papers should contact the technical point of contact listed in Section VII for guidance and direction in advance of preparation.

c. MAILING INSTRUCTIONS.

Email **Unclassified** electronic submission to the TPOC identified in Section VII. Encrypt or password-protect all proprietary information prior to sending. Offerors are responsible to confirm receipt with the TPOC. AFRL is not responsible for undelivered documents. If electronic submission is used, only one copy of the documentation is required.

Questions can be directed to the TPOC listed in Section VII.

4. OTHER SUBMISSION REQUIREMENTS/CONSIDERATIONS:

a. COST SHARING OR MATCHING RELATED TO FAR BASED AWARDS: Cost sharing is not a requirement. Cost sharing may be proposed and will be considered on a case-by-case basis. Cost share will not be a factor in selection for award. For OT awards, see Section IV.4.h.3.

b. SYSTEM FOR AWARD MANAGEMENT (SAM). Offerors must be registered in the SAM database to receive a contract award, and remain registered during performance and through final payment of any contract or agreement. Processing time for registration in SAM, which normally takes forty-eight hours, should be taken into consideration when registering. Offerors who are not already registered should consider applying for registration before submitting a proposal. The provision at FAR 52.204-7, System for Award Management (**Nov 2024**) applies.

c. EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT/ SUBRECIPIENT AWARDS: Any contract award resulting from this announcement may contain the clause at FAR 52.204-10 - Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020). Any grant or agreement award resulting from this announcement may contain the award term set forth in 2

CFR, Appendix A to Part 25 which can be viewed at: <https://www.govinfo.gov/app/details/CFR-2023-title2-vol1/CFR-2023-title2-vol1-part25-appA>

d. **ALLOWABLE CHARGES:** The cost of preparing white papers/proposals in response to this announcement is not considered an allowable direct charge to any resulting contract or any other contract, but may be an allowable expense to the normal bid and proposal indirect cost specified in FAR 31.205-18. Incurring pre-award costs for ASSISTANCE INSTRUMENTS ONLY are regulated by 2 CFR part 200.458, Pre-Award Costs.

e. **GOVERNMENT APPROVED ACCOUNTING SYSTEM:** An offeror must have a **government approved** accounting system prior to award of a cost-reimbursement contract per limitations set forth in FAR 16.301-3(a) to ensure the system is adequate for determining costs applicable to the contract. The acceptability of an accounting system is determined based upon an audit performed by the Defense Contract Audit Agency (DCAA). **IMPORTANT:** If you do not have a DCAA approved accounting system access the following link for instructions: https://sam.gov/opp/e628c811f4fe041accdddf55fb8539bf/view?keywords=AFRL-BAA-Guide&sort=-relevance&index=&is_active=true&page=1 For Other Transactions, an offeror must provide documentation that their accounting system is Generally Accepted Accounting Principles (GAAP) compliant in accordance with the DoD Other Transaction Guide.

f. **HUMAN USE:** All research involving human subjects, to include the use of human biological specimens and human data, selected for funding must comply with Federal regulations for human subject protection. Further, research involving human subjects that is conducted or supported by the DoD must comply with 32 CFR 219, “Protection of Human Subjects” found at: http://www.access.gpo.gov/nara/cfr/waisidx_07/32cfr219_07.html, and DoD Instruction 3216.02, “Protection of Human Subjects and Adherence to Ethical Standards in DoD-Supported Research” found at: <http://www.dtic.mil/whs/directives/corres/pdf/321602p.pdf>.

1. Institutions awarded funding for research involving human subjects must provide documentation of a current Assurance of Compliance with Federal regulations for human subject protection, for example a Department of Health and Human Services, Office of Human Research Protection Federal Wide Assurance found at: <http://www.hhs.gov/ohrp>.
2. All institutions engaged in human subject research, to include subcontractors, must have a valid assurance. In addition, personnel involved in human subject research must document the completion of appropriate training for the protection of human subjects.
3. For all research that will involve human subjects in the first year or phase of the project, the institution must submit evidence of a plan for review by an institutional review board (IRB) as part of the proposal. The IRB conducting the review must be the IRB identified on the institution’s Assurance of Compliance. The protocol, separate from the proposal, must include a detailed description of the research plan, study population, risks and benefits of study participation, recruitment and consent process, data collection, and data analysis. The designated IRB should be consulted for guidance on writing the protocol. The informed consent document must comply with 32 CFR 219.116. A valid Assurance of Compliance and evidence of appropriate training by all investigators should accompany the protocol for review by the IRB.

4. In addition to a local IRB approval, an AFRL-level human subject regulatory review and approval is required for all research conducted or supported by the DoD. The Air Force office responsible for managing the award can provide guidance and information about the AFRL-level review process. Confirmation of a current Assurance of Compliance and appropriate human subjects protection training is required before AFRL-level approval can be issued.
5. The time required to complete the IRB review/approval process will vary depending on the complexity of the research and/or the level of risk to study participants; ample time should be allotted to complete the approval process. The IRB approval process can last between 1 to 3 months, followed by a DoD review that could last 3 to 6 months. No funding may be used toward human subject research until all approvals are granted.

g. SUPPLIER PERFORMANCE RISK SYSTEM (SPRS). Offerors should have a BASIC NIST SP 800 171 DoD Assessment in the SPRS (<https://www.sprs.csd.disa.mil/>). Basic assessment is to be conducted by the offeror.

V. APPLICATION REVIEW INFORMATION:

1. CRITERIA: The following criteria, which are **listed in descending order of importance** and will be used to determine whether white papers and proposals submitted are consistent with the intent of this BAA and of interest to the Government:

- a. **Overall Scientific and Technical Merit** -- Including the approach for the development and/or enhancement of the proposed technology. The technical concepts should be clearly defined and developed, the technical approach must be sufficiently detailed to support the proposed concepts and technical claims.
- b. **Capabilities and Related Experience** - The extent to which the offeror demonstrates relevant technology and domain knowledge to establish that the offeror has credible capability and experience to complete the proposed work.
- c. **Openness, Maturity and Assurance of Solution** - The extent to which existing capabilities and standards are leveraged and the relative maturity of the proposed technology in terms of reliability and robustness.
- d. **Reasonableness and realism of proposed costs and fees (if any)**

No further evaluation criteria will be used to select white papers for proposal invitation. Proposals will be evaluated IAW this evaluation criteria only and categorized/selected for award as detailed in Section V.2.b.2. White papers and proposals submitted will be evaluated as they are received.

2. REVIEW AND SELECTION PROCESS:

- a. Only Government employees on the BAA team will evaluate the white papers/proposals for selection. The Air Force Research Laboratory's Information Directorate has contracted for various business and staff support services, some of which require contractors to obtain administrative access to proprietary information submitted by other contractors. Administrative access is defined as "handling or having physical control over information for the sole purpose of accomplishing the administrative functions specified in the administrative support contract, which do not require the review, reading, and comprehension of the content of the information on the part of non-technical professionals assigned to accomplish the specified administrative tasks." These contractors have signed general non-disclosure agreements and organizational

conflict of interest statements. The required administrative access will be granted to non-technical professionals. Examples of the administrative tasks performed include: a. Assembling and organizing information for R&D case files; b. Accessing library files for use by government personnel; and c. Handling and administration of proposals, contracts, contract funding and queries. Any objection to administrative access must be in writing to the Contracting Officer and shall include a detailed statement of the basis for the objection.

b. WHITE PAPER/PROPOSAL REVIEW PROCESS:

1. **FIRST STEP – White Paper Reviews:** The Government will review White Papers to identify those with the greatest potential to meet the Air Force’s needs based on the criteria above. If funding is available for an identified white paper, AFRL/RI will request a formal technical and cost proposal from the Offeror. For white papers not of interest to the Government, or for which funding is not available, those Offerors will receive letters from the Government indicating the basis for non-selection.

2. SECOND STEP – Proposal Review and Selection Process

c. **Categories:** Based on the evaluation, proposals will be categorized as Selectable or Not Selectable (see definitions below). The selection of one or more offerors for award will be based on the evaluation, as well as importance to agency programs and funding availability.

1. **Selectable:** Proposals are recommended for acceptance, if sufficient funding* is available.
2. **Not Selectable:** Even if sufficient funding existed, the proposal should not be funded.

**Selectable proposals will be designated as funded or unfunded. Letters will be sent to the unfunded offerors. These proposals may be funded at a later date without reevaluation, if funding becomes available.*

- d. The Government reserves the right to award some, all, or none of the proposals. When the Government elects to award only a part of a proposal, the selected part may be categorized as Selectable, though the proposal as a whole may not merit such a categorization.
- e. In parallel with the technical evaluation, the Government will review the SF424 (for assistance instruments), the Research and Related Senior and Key Person Profile Worksheet (for FAR based contracts or Other Transactions), as well as the Security Program Questionnaire and Privacy Act statement submitted by the Contractor in order to satisfy the S&T Protection requirements IAW AFRLI 61-113. In the event a security risk is identified and the Government has determined the security risk exceeds the acceptable threshold, the Offeror will be notified and informed of the declination of award.
- f. **Proposal Risk Assessment:** Proposals’ technical, cost, and schedule risk will be assessed as part of the above evaluation criteria’s application. Proposal risk relates to the identification and assessment of the risks associated with an offeror's proposed approach as it relates to accomplishing the proposed effort. Tradeoffs of the assessed risk will be weighed against the potential scientific benefit. Proposal risk for schedule relates to an assessment of the risks associated with the offeror's proposed number of hours, labor categories, materials, or other cost elements as it relates to meeting the proposed period of performance.

- g. Prior to award of a potentially successful offer, the Contracting Officer will make a determination regarding price reasonableness and realism.

3. RESPONSIBILITY/QUALIFICATION (R/Q) (FORMERLY FAPIIS) PUBLIC ACCESS: The Government is required to review and consider any information about the applicant that is in SAM.gov before making any award in excess of the simplified acquisition threshold (currently \$250,000) over the period of performance. An applicant may review and comment on any information about itself that a federal awarding agency previously entered. The Government will consider any comments by the applicant, in addition to other information in SAM.gov in making a judgment about the applicant's integrity, business ethics, and record of performance under federal awards when completing the review of risk posed by applicants as described in 2 CFR § 200.205 Federal Awarding Agency Review of Risk Posed by Applicants and per FAR 9.104-6.

4. ADEQUATE PRICE COMPETITION: As this BAA is an Open BAA, adequate price competition is not anticipated since there is no set response time, and proposals are evaluated at the time of receipt. Offerors whose proposals are selected for award will be expected to submit certified cost and pricing data on contracts exceeding **\$2.5M** (the threshold is \$7.5M for small businesses or nontraditional defense contractors).

VI. STEP TWO INFORMATION – REQUEST FOR PROPOSAL & AWARD:

1. PROPOSAL FORMATING: When developing proposals, reference the AFRL "Broad Agency Announcement (BAA): Guide for Industry," JAN 2025, and RI-Specific Proposal Preparation Instructions, APR 2025, which may be accessed at: [SAM.gov](https://sam.gov) . Always reference the newest versions of these documents.

Please note that less than 12 point font is acceptable for graphics and illustrations (as in labels and short descriptions) as long as it is readable when printed out on standard 8x11 paper.

2. AWARD NOTICES: Those white papers found to be consistent with the research areas of interest and expected results within the broad topic areas as described in the Technology Requirements section of this BAA and of interest to the Government may be invited to submit a technical and cost proposal. Notification by email or letter will be sent by the TPOC. Such invitation does not assure that the submitting organization will be awarded a contract. Those white papers not selected to submit a proposal will be notified in the same manner. Prospective offerors are advised that only Contracting Officers are legally authorized to commit the Government. All offerors submitting proposals will receive notification of their evaluation results within 45 days of submission. Offerors should email the TPOC and the Contracting Officer listed in Section VII, for status of their proposal after 45 days, if no such correspondence has been received.

3. DEBRIEFINGS: If a debriefing is requested in accordance with the time guidelines set out in FAR 15.505 and 15.506, a debriefing will be provided, but the debriefing content may vary to be consistent with the procedures that govern BAAs (FAR 35.016) and OTs (10 USC 4021 (previously 10 USC 4002, 2371) , and Other Transactions for Prototype which are governed by 10 USC 4022 (previously 10 USC 4003, 2371b) and 10 USC 4023 (previously 10 USC 4004, 2373). Debriefings will not be provided for white papers.

4. ADMINISTRATIVE AND NATIONAL POLICY REQUIREMENTS:

- a. **FACILITY CLEARANCE.** Depending on the work to be performed, the offeror may require a *SECRET* or *TOP SECRET/SCI* facility clearance and safeguarding capability; therefore, personnel identified for assignment to a classified effort must be cleared for access to *SECRET* or *TOP SECRET/SCI* information at the time of award. In addition, the offeror may be required to have, or have access to, a certified and Government-approved facility to support work under this BAA.
- b. **EXPORT CONTROL LAWS.** Awards under this solicitation may require access to, or generation of, data subject to export control laws and regulations. Only contractors who are registered and certified with the Defense Logistics Information Service (DLIS) and have a legitimate business purpose may participate in this solicitation. For questions, contact DLIS on-line at <http://www.dla.mil/HQ/InformationOperations/LogisticsInformationServices.aspx> or at the DLA Logistics Information Service, 74 Washington Avenue North, Battle Creek, Michigan 49037-3084, and telephone number 1-800-352-2255 (24/7). You must submit a copy of your approved DD Form 2345, Militarily Critical Technical Data Agreement, with your white paper/proposal.
- c. **SMALL BUSINESS PARTICIPATION.** The Government encourages the best sources from the scientific and industrial communities to propose, including small business concerns, large businesses, academia and non-profit entities. Non-small businesses are encouraged to team with small business concerns to come up with the best technical solutions and obtain the best mix of cost, performance and schedule.
- d. **ACTIONS FOR THE PROTECTION OF INTELLECTUAL PROPERTY, CONTROLLED INFORMATION, KEY PERSONNEL AND CRITICAL TECHNOLOGIES.** Offerors who are requested to submit a proposal under this solicitation of grants, cooperative agreements, Technology Investment Agreements, and other non-procurement transactions **only** shall submit specific information for all key personnel, whether or not the individuals' efforts under the project are to be funded by the DoD. Specific requirements will be detailed in the Request for Proposal (RFP) letter. The information shall be included in the Research and Related/Key Person Profile (Expanded) form (<https://www.grants.gov/forms/r-r-family.html>). This collection only applies to persons identified as key personnel. This information shall **not** be included in the overall proposal page limits. **Failure to submit this information may cause the proposal to be returned without further review**, and the DoD reserves the right to request further details before making a final determination on funding an effort. This information will be used to support protection of intellectual property, controlled information, key personnel, and information about critical technologies relevant to national security. Additionally, this information will be used to limit undue influence, including foreign talent programs, by countries that desire to exploit United States' technology within the DoD research, science and technology, and innovation enterprise.

Certification Regarding Disclosure of Funding Sources

By submission of a white paper/proposal, you agree to abide by the following statement: "By signing this white paper/proposal, I certify the proposing entity is in compliance with Section 223(a) of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 which requires that: (a) the PI and other key personnel certify that the current and pending

support provided on the proposal is current, accurate and complete; (b) the PI and other key personnel agree to update such disclosure at the request of the agency prior to the award of support and at any subsequent time the agency determines appropriate during the term of the award; and (c) the PI and other key personnel have been made aware of the requirements under Section 223(a)(1) of this Act. I am aware that any false, fictitious, or fraudulent statements or claims may subject me to criminal, civil, or administrative penalties. (U.S. code, Title 218, Section 1001).

- e. BURDEN REDUCTION. With the exception of paragraph d. above, in order to reduce grant recipient reporting burden, effective 1 JAN 2019, use of the SF-424B is optional. Also, effective 1 JAN 2020, the SAM will become the central repository for common government-wide certifications and representations required of Federal grants recipients. As registration in SAM is required for eligibility for a Federal award and registration must be updated annually, Federal agencies will use SAM information to comply with award requirements and avoid increased burden and costs of separate requests for such information, unless the recipient fails to meet a Federal award requirement, or there is a need to make updates to their SAM registration for other purposes. (OMB Memorandum M 18-24).

5. DATA RIGHTS:

- a. SBIR RIGHTS. The potential for inclusion of Small Business Innovation Research (SBIR) or data rights other than unlimited on awards is recognized. In accordance with (IAW) the Small Business Administration (SBA) SBIR Policy Directive, Section 8(b), SBIR data rights clauses are non-negotiable and must not be the subject of negotiations pertaining to an award, or diminished or removed during award administration. Issuance of an award will not be made conditional based on forfeit of data rights. If the SBIR awardee wishes to transfer its SBIR data rights to the Air Force or to a third party, it must do so in writing under a separate agreement. A decision by the awardee to relinquish, transfer, or modify in any way its SBIR data rights must be made without pressure or coercion by the agency or any other party.
- b. NON-SBIR RIGHTS.
 - 1. Non-SBIR data rights less than unlimited will be evaluated and negotiated on a case-by-case basis. Government Purpose Rights are anticipated for data developed with DoD–reimbursed Independent Research and Development (IR&D) funding.
 - 2. The Air Force Research Laboratory is engaged in the discovery, development, and integration of warfighting technologies for our air, space, and cyberspace forces. As such, rights in technical data and noncommercial computer software (NCS) developed or delivered under this contract are of significant concern to the Government. The Government will therefore carefully consider any restrictions on the use of technical data, NCS, and NCS documentation which could result in transition difficulty or less-than full and open competition for subsequent development of this technology.
 - 3. Third Party Software. DFARS 252.227-7014(d) describes requirements for incorporation of third party computer software. Any third party software (commercial and noncommercial) to be incorporated into a deliverable must be clearly identified in the proposal. Prior to delivery of any third party software, the contractor will obtain an appropriate license for the Government, and the written approval of the contracting officer.

- c. IDENTIFICATION & ASSERTION. IAW DFARS 252.227-7017, the Identification and Assertion of Use, Release, or Disclosure Restriction provision applies. See AFRL/RI Specific Proposal Preparation Instructions for further guidance and samples.

6. REPORTING:

- a. Contract Applicable: Once a proposal has been selected for award, offerors will be given complete instructions on the submission process for the reports.
- b. FAPIIS Applicable: As required by 2 CFR 200 Appendix XII of the Uniform Guidance and FAR 9.104-6, non-federal entities (NFEs) are required to disclose in FAPIIS any information about criminal, civil, and administrative proceedings, and/or affirm that there is no new information to provide. This applies to NFEs that receive federal awards (currently active grants, cooperative agreements, and procurement contracts) greater than \$10,000,000 for any period of time during the period of performance of an award/project.

7. NOTICE: The following provisions* apply:

- a. FAR 52.204-7, System for Award Management
- b. FAR 52.204-16, Commercial and Government Entity Code Reporting
- c. FAR 52.204-22, Alternative Line Item Proposal
- d. FAR 52.204-29, Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures
- e. FAR 52.211-14, Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use
- f. FAR 52.232-2, Service of Protest
- g. DFARS 252.203-7005, Representation Relating to Compensation of Former DoD Officials
- h. DFARS 252.204-7008, Compliance with Safeguarding Covered Defense Information Controls
- i. DFARS 252.204-7019, Notice of NISTSP 800-171 DoD Assessment Requirements
- j. DFARS 252.204-7024, Notice on the Use of the Supplier Performance Risk System
- k. DFARS 252.215-7009, Proposal Adequacy Checklist
- l. DFARS 252.215-7013, Supplies and Services Provided by Nontraditional Defense Contractors
- m. DFARS 252.225-7055, Representation Regarding Business Operations with the Maduro Regime
- n. DFARS 252.225-7057, Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China
- o. DFARS 252.225-7059, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation
- p. DFARS 252.227-7028, Technical Data or Computer Software Previously Delivered to the Government
- q. DFARS 252.239-7017, Notice of Supply Chain Risk
- r. DFARS 252.239-7098, Prohibition on Contracting to Maintain or Establish a Computer Network Unless Such Network is Designed to Block Access to Certain Websites-Representation (Deviation 2021-O0003) (APR 2021)

* Please note that the current versions or deviations of the related clauses will be included in any resulting contract. Additional provisions may be included in any resultant contract, dependent upon each individual effort.

8. **GRANT AWARDS ONLY**: For efforts proposed as grant awards, offerors must provide an abstract in their proposal (not to exceed one page) that is publicly releasable and that describes - in terms the public may understand - the project or program supported by the grant. If the proposal is selected for

award, the DoD will publicly post the abstract to comply with Section 8123 of the Department of Defense Appropriations Act, 2015 (Pub. L. 113-235).

9. TECHNOLOGY INCENTIVE RANGE: AFRL/RI does not expect R&D efforts to qualify for the Technology Incentive Range as defined in DFARS 215.404-71-2(d)(4) when calculating performance risk using the Weighted Guidelines method. The incentive is to be applied for technology innovation for mature, operational, non-prototype type systems only.

10. GENERALLY ACCEPTED ACCOUNTING PRINCIPLES (GAAP) COMPLIANCE: When proposing an Other Transaction (OT), provide documentation that your accounting system is GAAP compliant. Offerors must also self certify that they (or their subcontractor who will be participating to a significant extent) are a Nontraditional Defense Contractor, who is defined as an entity that is not currently performing and has not performed, within one year period prior to solicitation, any contract or subcontract for the DoD subject to full CAS coverage.

11. FINANCIAL RESOURCES: Proposals shall include information to determine adequate financial resources to perform the effort, taking into consideration all existing commercial and governmental business commitments. See DFARS 232.072-2(b) for a list of the types of information used to support financial responsibility. Examples include financial statements (e.g. Balance Sheet, Income Statement, Cash Flow Statement, Compensation); disclosures of previous insolvency; business case/cash flow forecasts; financing arrangements; and/or letters of good standing from accredited financial institutions. Proposals shall also include all significant ratios as outlined in DFARS 232.072-2(b)(10)(i)-(vi). This requirement only applies to FAR based awards.

VII. AGENCY CONTACTS:

All white paper and proposal submissions and any questions of a technical nature shall be directed to the cognizant TPOC as specified below (unless otherwise specified in the technical area):

BAA PROGRAM MANAGER:

Qasim Zafar
AFRL/RITA
525 Brooks Rd
Rome, NY 13441-4505
Telephone: (315)330-2710
Email: qasim.zafar@us.af.mil

Questions of a contractual/business nature shall be directed to the cognizant contracting officer, as specified below (**email requests are preferred**):

Amber Buckley
Email: Amber.Buckley@us.af.mil

Emails must reference the solicitation BAA number and title of the acquisition.

In accordance with DAFFARS 5301.91, an Ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition announcement. **Before consulting with an ombudsman, interested parties must first address their concerns, issues,**

disagreements, and/or recommendations to the contracting officer for resolution. DAFFARS Clause 5352.201-9101 Ombudsman will be incorporated into all contracts awarded under this BAA.

The AFRL Ombudsman is as follows:

Ombudsman: AFRL/PK Technical Director
Alternate Ombudsman: AFRL/PK Deputy Director of Contracting
1864 4th Street
WPAFB OH 45433
Phone: (937) 904-9700
FAX: (937) 656-7321
Email: afrl.pk.workflow@us.af.mil